

Moseen Ansari v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 4 August 2021 · Writ-C No. 17205 of 2021 · WRIT - C No. 17205 of 2021 · **Writ disposed; 6.5(b)(ii) application to be heard on Rs.20,000 deposit**

HEADNOTE

A writ challenging a Rs.1,01,674 demand notice / final assessment was disposed without examining the bill. If the consumer files a fresh Clause 6.5(b)(ii) correction application with a Rs.20,000 deposit within two weeks, the Executive Engineer must hear and decide it within two weeks thereafter. Coercive measures stayed for one month or until that disposal, subject to compliance.

FACTUAL SUMMARY

Moseen Ansari challenged a demand notice dated 2 June 2021 for Rs.1,01,674. He had applied on 5 June 2021 to the Executive Engineer seeking correction of that final assessment under Clause 6.5(b)(ii) of the U.P. Electricity Supply Code, 2005. After a 28 July 2021 listing for notice on respondent no.5, the Division Bench heard the writ on 4 August 2021. The Court did not examine whether the assessed demand was correctly computed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)(ii)

correction of final assessment

HOLDING

Where a consumer challenges a demand notice / final assessment and has sought correction under Clause 6.5(b)(ii) of the U.P. Electricity Supply Code, 2005, the High Court may dispose of the writ without examining the demand, directing that if a fresh application is filed with a deposit of Rs.20,000 in terms of the principle in Clause 6.5(b)(ii) within two weeks, the Executive Engineer shall hear and decide that correction application within two weeks thereafter, coercive measures remaining stayed for one month or until disposal of the application, subject to compliance. ¶ 3-5

PRINCIPLE TAGS

disputed-assessment-relegated-to-6.5(b)(ii) Writ against a final-assessment demand was disposed by relegating the consumer to a fresh Clause 6.5(b)(ii) correction application before the Executive Engineer, conditioned on a Rs.20,000 deposit drawn from that clause's principle, without a merits finding on the bill. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS.1,01,674 / FINAL ASSESSMENT DATED 02.06.2021

Left to the Executive Engineer on a fresh Clause 6.5(b)(ii) application; the Court did not examine the assessment on merits. ¶ 3-4